

VAN WERT AMATEUR RADIO CLUB

CONSTITUTION

PREAMBLE:

We, the undersigned, wishing to secure for ourselves the pleasures and benefits of an association of persons commonly interested in Amateur Radio, constitute ourselves the Van Wert Amateur Radio Club and enact this Constitution as our governing law. It shall be our purpose to operate a nonprofit corporation for educational and scientific purposes as follows:

- a) To educate and increase the proficiency of its members concerning scientific advancement and progress in the science of Amateur Radio communications.
- b) To provide for dissemination of information among its members concerning scientific advancement and progress in the field of Amateur Radio communications.
- c) To organize and train licensed radio amateurs capable of maintaining radio communications as a public service during periods of emergency.
- d) To encourage and sponsor experimental activities in radio communication and electronics, to the end that skills and experience gained in Amateur Radio will further the application of electronics to the benefit of the public at large.
- e) To promote the elevation of standards of practice and ethics in the conduct of Amateur Radio communications.

FISCAL YEAR: Article I

The fiscal year of the Club shall begin on the first day of January in each year and end at the close of the last day of the following December.

MEMBERSHIP: Article II

All persons interested in Amateur Radio communication shall be eligible for membership. Membership shall be by application and election upon such terms as the Club shall provide in the By-Laws.

OFFICERS: Article III

Sec. 1: The officers of this Club shall be: President, Vice President, Secretary, Treasurer, Activities Manager and Publicity Manager.

Sec. 2: The officers of this Club except for the offices of Treasurer and Secretary shall be elected for a term of one (1) year by ballot of members present, provided there be a quorum, at the annual meeting. The offices of Treasurer and Secretary are two (2) year terms.

Sec. 3: Vacancies occurring between elections must be filled by special elections at the first regular meeting following the withdrawal or resignation.

Sec. 4: Officers may be removed by a two-thirds vote of the "full" membership.

Sec. 5: Any officer shall be removed, either at any regular meeting or at a special meeting of the Executive Committee called for that purpose by a majority vote of those Committee persons present, if that officer has missed four (4) unexcused regular or special meetings. An unexcused absence is defined as being absent from any regular or

special meeting of the Club without first gaining permission for such absence from the President or, in his absence, the Vice President.

DUTIES OF OFFICERS: Article IV

Sec. 1: The President shall preside at all meetings of this Club and conduct them according to the rules adopted. He/She shall enforce due observance of this Constitution and By-Laws, decide all questions of order, sign all official documents adopted by the Club, and perform all other duties pertaining to the office of President.

Sec. 2: The Vice President shall assume all the duties of the President in his/her absence. In addition, with the assistance of the Activities Manager, he/she shall organize Club activities, plan and recommend contests for operating benefits, and advance Club interest and activity as approved by the Club. He/She may appoint committees or assistants to aid him/her in specific areas of activity.

Sec. 3: The Secretary shall keep the Constitution and By-Laws of the Club and have the same with him/her at every meeting. He/She shall note on the Constitution all amendments, changes and additions and shall permit it to be consulted by members upon request. He/She shall keep a record of the proceedings of all meetings, keep a roll of members, submit membership applications, carry on all correspondence, and read communications at each meeting. At the expiration of his/her term, he/she shall turn over all items belonging to the Club to his/her successor.

Sec. 4: The Treasurer shall receive and receipt for all monies paid to the Club, keep an accurate account of all monies received and expended, pay no bills without proper authorization. At the end of each quarter, he/she shall submit an itemized statement of disbursements and receipts. At the end of his/her term, he/she shall turn over everything in his/her possession belonging to the Club to his/her successor.

Sec. 5: The Activities Manager, under the direction of the Vice President, shall organize Club activities, plan and recommend contests for operating benefits, and advance Club interest and activity as approved by the Club.

Sec. 6: The Publicity Manager shall report the activities of the Club or its members to the appropriate news media, including, but not limited to, QST Magazine; local radio, television and newspapers; Club newsletters; and the ARRL Section Communications Manager, to establish the best image of the Club and its members. He/She shall keep a record of activities and, at the expiration of his/her term, shall turn over all items belonging to the Club to his/her successor.

EXECUTIVE COMMITTEE: Article V

There shall be an Executive Committee consisting of all elected officers and the immediate Past President. In the event the Past President is unable to serve out his/her term, the President shall appoint, subject to majority vote of the Executive Committee, an active Past President to serve the unexpired term.

COMMITTEES: Article VI

Sec. 1: Standing Committees. There shall be Standing Committees appointed by the President to deal with the following subjects:

- a) Ways and Means
- b) Audit
- c) Nominating
- d) Field Day
- e) Hamfest
- f) Technical

The Chairperson of each committee shall hold "full" membership.

Sec. 2: Special or Ad Hoc Committees may be established by the President with approval of the Executive Committee.

Sec. 3: The Audit committee appointments are for two (2) years with each incoming president able to appoint the open positions.

STATION TRUSTEE: Article VII

The Station Trustee and Control Operator(s) are responsible for the operation of the Club stations(s). The Station Trustee and Control Operator(s) shall be appointed by the Executive Committee for a term of one (1) year. The Station Trustee and Control Operator(s) shall be "full" members in good standing and will be selected based on the class of FCC Amateur Radio license held, technical knowledge, and experience in Amateur Radio operations.

MEETINGS: Article VIII

The By-Laws shall provide for the annual business meeting and regular and special meetings. At all meetings, three officers, one which must be the President or Vice President and two voting members shall constitute a quorum for the transaction of business

MEMBERSHIP ASSISTANCE: Article IX

The Club, through designated committees, will provide technical advice to members concerning equipment design and operation to assist in frequency observance, clean signals, uniform practice, and absence of spurious radiations from Club member stations. The Club shall also maintain a program to foster and guide public relations.

DUES AND ASSESSMENTS: Article X

Sec. 1: The annual dues of members shall be determined by majority vote of the "full" membership attending the Annual Business Meeting. All dues shall be due and payable the first day of January of each year.

Sec. 2: The Club by a two-thirds vote of the total "full" membership, may levy upon the general membership such assessments as shall be deemed necessary for the business of the Club within its purpose as set forth in the Constitution. Proposals for assessments shall be submitted in writing at a regular meeting and shall be voted on at the next following regular meeting provided all voting members have been notified by mail ten (10) days in advance of the meeting at which it is to be voted upon.

Sec. 3: Nonpayment of such dues and assessments shall be cause for expulsion from the Club at the discretion of the membership.

PROXIES: Article XI

A member may vote by proxy on issues requiring the approval of two-thirds of the total voting membership, provided the proxy is on a form prescribed by the Club and is filed with the Club Secretary by the date specified.

DEDICATION OF ASSETS: Article XII

The property of the Club is irrevocably dedicated to educational and scientific purposes, and no part of its net income or assets shall ever inure to the benefit of any officer, trustee or member thereof, or to the benefit of any private individual. Upon the dissolution of the Club, its assets remaining after the payment of, or provision for the payment of, all debts and liabilities shall be distributed to any organization which is organized and then in existence and exempt under Section 501(C)(3) of the Internal Revenue Code or the corresponding provisions of any future United States Internal Revenue Law as the Executive Committee shall determine.

VIOLATIONS: Article XIII

Any member who fails to abide by and conform to this Constitution and By-Laws may be expelled from Club membership by a two-thirds vote of the "full" membership.

PARLIAMENTARY AUTHORITY: Article XIV

The parliamentary authority for all proceedings not covered by this Constitution and By-Laws shall be the current edition of Roberts Rules of Order Newly Revised.

AMENDMENTS: Article XV

The Constitution or By-Laws may be amended by a two-thirds vote of the total "full" membership. Proposals for amendments shall be submitted in writing at a regular meeting and shall be voted on at the next following regular meeting, provided all members have been notified of the intent to amend the Constitution ten (10) days in advance of the meeting at which it is to be voted upon.

Amended and attested to this fifth day of May 2018

President: Jack Snyder

Vice President: Dave Taylor

Secretary: Stephen Kouts

Treasurer: Dave Freels

Activities Manager: Ralph Shields

Publicity Manager: Michael Harvey

VAN WERT AMATEUR RADIO CLUB

BY-LAWS

MEMBERSHIP

"Full" Membership is open to licensed Amateur Radio operators. Full membership includes all Club privileges as well as the right to vote for Club officers.

"Associate" Membership is open to persons interested in Amateur Radio. Associate membership shall be a sustaining one and shall have no vote in any proceedings of the Club nor be eligible to hold any office.

"Honorary" Membership shall consist of individuals who have provided outstanding help and aid to the amateur service. Honorary membership shall be awarded by vote of the Executive Committee and for the purpose of extending recognition and gratitude. Honorary members shall have no vote in any proceedings of the Club nor be eligible to hold any office.

REQUIREMENTS TO HOLD OFFICE

In order to hold office and remain in office, an individual must be a member in good standing. An individual may hold only one (1) office in the Club at a time. In order to hold office, an individual must hold a valid Amateur Radio License.

TERMS OF OFFICE

Term of office is one (1) year, beginning on the first day of January in each year, except for the offices of Treasurer and Secretary. These offices are held for two (2) years. The office of Secretary is elected in 'even' numbered years and the Treasurer in 'odd' numbered years. Elections will be held at the Annual Business Meeting. Elections will be by secret ballot and will be administered by the Secretary. A majority vote of the "full" membership in attendance is necessary to elect an officer.

MEETING REQUIREMENTS

The Annual Business Meeting shall be held on the first Saturday in December of each year.

Regular meetings shall be held on the first and third Saturdays of each month, except when said Saturday falls on the legal holidays of New Year, Independence Day, and Christmas. The meeting shall be called to order at 8:00 p.m. local time. Special meetings may be called by the President upon the majority vote of the Executive Committee or upon the written request of any ten "full" members.

Notices shall be sent to all voting members giving the date, time, location and business to be transacted at such Annual and Special Meetings ten (10) days in advance of such meetings. Only such business as is designated in the Notice shall be transacted.

ATTENDANCE REQUIREMENTS

The President and/or Vice President must be present or the meeting will be rescheduled. The only exception will be prior approval of the President for the Secretary to conduct the meeting.

SPENDING AUTHORIZATION

Any officer may spend Club funds as indicated below:

A properly completed "Request for Funds" form must be submitted to the Club Treasurer in any expenditure. Amounts of less than twenty-five dollars (\$25.00) require approval of two (2) or more officers, at least one (1) of which must be President or Vice President; twenty-five dollars (\$25.00) to fifty dollars (\$50.00) require approval of four officers, at least one (1) of which must be President or Vice President. Expenditures of fifty Dollars (\$50.00) or more require approval by a majority of the voting membership present at the meeting at which they are voted upon.

REQUEST FOR FUNDS FORM

A "Request for Funds" form must be completed, necessary signatures obtained, and the form returned to the Club Treasurer before any Club funds may be released. Blank "Request for Funds" forms are available from the Club Treasurer.

CLUB ASSETS

The Club Secretary will maintain a written inventory of Club assets and a separate written inventory of items being used by the Club on a "borrowed" basis. The list of borrowed items will include the name of the owner and expected return date, if any. The written inventories must be updated by the Club Secretary at least once each year, and the inventories must be as current as reasonably possible for the Annual Business Meeting.

DISSOLUTION OF THE CLUB

Disposition of Club Property. Upon dissolution of the Club, any borrowed equipment must first be repaired, if needed, before returning it to the lender. Any donated equipment must be made available to the donor. Any Club-owned assets must be sold in a timely and equitable manner with Club members being given first option of purchase. All proceeds of the sale will go into the Club Treasury. Any funds remaining in the Club Treasury after the above items have been completed shall be disposed of as outlined

in the Club Constitution. The disposition of Club property as indicated above will be the responsibility of the Executive Committee.

AMENDMENTS

April 7, 1990

The requirement for Van Wert County residence and Technician or higher class license to hold Club office was removed.

The terms of office of both Treasurer and Secretary were changed to two (2) years. This change was made to provide continuity between administrations.

May 5, 2018

MEETINGS: Article VIII

At all meetings, ten percent of the "full" membership, or (10) members, which ever is greater, shall constitute a quorum for the transaction of business. **REMOVED**

CHANGED TO:

At all meetings, three officers, one which must be the President or Vice President and two voting members shall constitute a quorum for the transaction of business.